

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C23-02013
CASE NAME: DENNIS SANFORD VS. CHANNEL LUMBER CO.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DEPOSITION TESTIMONY**
FILED BY: CHANNEL LUMBER CO.
TENTATIVE RULING:

This hearing date was initially set on defendants' motion to Compel further deposition testimony by GRS Funding, Inc. The hearing was advanced and a ruling made. See Order entered June 24, 2026. This hearing date is VACATED.

18. 9:01 AM CASE NUMBER: C24-02971
CASE NAME: ROBERT HARELSON, II VS. ROBERT HARELSON
***HEARING ON MOTION FOR DISCOVERY TO COMPEL DEFENDANT ROBERT W. HARELSON'S**
DEPOSITION AND ANSWERS TO DEPOSITION QUESTIONS
FILED BY: HARELSON, ROBERT J, II
TENTATIVE RULING:

Plaintiff Robert J. Harelson II ("Plaintiff") filed a motion to compel Robert W. Harelson's ("Defendant") further deposition testimony and request for sanctions on June 11, 2026 (the "Motion to Compel Further Deposition"). The Motion to Compel Further Deposition was set for hearing on September 21, 2026. The motion is opposed.

Background

Plaintiff served an Amended Notice of Deposition on Defendant on March 23, 2026. See Declaration of Craig A. Diamond filed June 11, 2026 (the "Supporting Declaration"), ¶4 and **Exhibit B** thereto. This notice identified 28 requests for production (the "Requests"). *Id.*

Most of the Requests seek broad categories of document production. Supporting Declaration, **Exhibit B**. Many contained multiple subparts, while others are extraordinarily broad and impermissibly vague. See e.g. Request No. 28 ("All Documents reflecting any effort to rewrite history, including ..."), Supporting Declaration, **Exhibit B**.

Plaintiff complains that "more than 1,700 pages of documents" were produced at the deposition which were not identified by request number "as required" under the discovery statutes. Plaintiff seeks an order compelling Defendant to sit for a further deposition so that Defendant can be further examined about the documents produced.

Sanctions in the amount of \$2,958.00 are also requested.

Opposition papers were filed on September 8, 2026.

Reply papers were filed on September 10, 2026.

Analysis

A motion to compel further deposition testimony must be accompanied by a declaration under Code of Civil Procedure section 2016.040. Code Civ. Proc. § 2025.450(b)(2) and 2025.480(b).